



Authority Support Required

1 assets are awaiting your Letters of Authority to finalize ownership. These assets require probate authority to complete the transfer process.

[FINALIZE DOCUMENTS](#)

[View Asset List](#) →

Strategic Assessment
SECURE & NOTIFY
DEATH TO FILING

Petition & Authority
OBTAINING POWERS
AFTER PETITION FILED

Asset Discovery
INVENTORY & APPRAISAL
AFTER LETTERS ISSUED

Creditor Claims
NOTICE & PRIORITY
AFTER LETTERS ISSUED

Asset Liquidation
TRANSFER & SELL
MONTH 6–12

Strategic Assessment
Secure & Notify • Death to Filing

Petition & Authority
Obtaining Powers • After Petition Filed

Asset Discovery
Inventory & Appraisal • After Letters Issued

Creditor Claims
Notice & Priority • After Letters Issued

Asset Liquidation
Transfer & Sell • Month 6–12

Final Distribution
Estate In Closing • Month 6–12



Strategic Assessment CURRENT

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Preliminary Asset & Liability Scan NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining bond requirements.



Publish Notice to Creditors (CA — Starts Claims Timing) Check Deadline LOCKED

In California, publication of the required notice is a standard step and commonly drives creditor claims timing. Use the court-accepted notice format and follow local publication requirements for your county.



Secure the Property
Change locks, forward mail, and ensure the home is protected from theft or damage.

[Upload Photos](#)



Initial Property Protection
Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.



Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

Death Certificate Obtained



Report Death to SSA



Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts



Manage Utilities

Review decedent's utility accounts (electricity, water, gas).



Conduct Genealogical Search OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.



Locate Important Documents (Intestate) OPTIONAL

Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

Upload Documents



Establish Estate Financial Account

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

Death Certificate Obtained



Upload Letters of Authority



Upload EIN



Managed Payment of Immediate Bills

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills



Obtain EIN for the Estate

Apply for an Employer Identification Number from the IRS. This unique ID is required to open an estate bank account and for all tax filings.



Upload IRS Form SS-4



Apply for EIN Online (IRS)



File IRS Form 56 (Notice of Fiduciary)

Formally notify the IRS that you have taken on the role of Executor/Administrator. This ensures that all tax correspondence regarding the decedent is sent to you.



Upload IRS Form 56



Upload Certified Letters of Authority



Download IRS Form 56



Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.



Verify Notarization Rules (Apostille)

Check if your current country of residence is a member of the Hague Apostille Convention. This determines how documents signed abroad must be authenticated for U.S. court



Check HCCH Member States



UPLOAD MISCELLANEOUS

Court Compliance & Eligibility

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- ☐
- Validate Venue and Jurisdiction**
Confirm the decedent's legal domicile and county residency to ensure the petition is filed in the legally appropriate court.

- ☐
- Screen Fiduciary Eligibility**
Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.

- ☐
- Validate Interested Parties**
Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.

- ☐
- Prepare Required Notices and Waivers**
Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.

- ☐
- Evaluate Need for Temporary Authority**
Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.

- ☐
- Calculate Court Filing Fees**
Determine the exact statutory filing fee based on the estimated gross value of the probate estate.

- ☐
- Compile Required Court Form Packet**
Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.

 **UPLOAD MISCELLANEOUS**

Petition & Authority

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1 ASSET

- ☐
- File Petition for Administration**
Submit the administration petition to the court to open the estate case and request appointment as Administrator (since there is no Will).

 **Death Certificate Obtained**



Upload Petition Form

- ☐
- Pay Court Filing Fee**  **LOCKED**
Pay the required court filing fee to process the petition. Fees vary by estate value.

- ☐
- Submit Oath and Designation**  **LOCKED**
Sign and submit the Oath and Designation form, officially agreeing to serve as the fiduciary.

- ☐
- Obtain Citation from Court**  **LOCKED**
Receive the issued Citation from the court, which sets the hearing date and commands interested parties to appear.

- ☐
- Serve Citation on Interested Parties**  **LOCKED**
Serve the Citation to all required heirs and interested parties according to strict statutory rules.

Attend Administration Hearing

LOCKED

Appear in court for the administration hearing. Since there is no Will, the court will confirm heirs and appointing you as Administrator.

Obtain Letters of Administration

LOCKED

Once the court approves the petition, obtain certified copies of your Letters of Administration.

File Small Estate Affidavit

For estates under threshold, use this shortcut to bypass court probate.

Death Certificate Obtained

Upload Affidavit Form

File Spousal Property Petition

Request court order to transfer property to surviving spouse without full probate.

Death Certificate Obtained

Upload Petition Form

Start Spousal Path

Give Notice of Hearing

OPTIONAL

LOCKED

Notify all interested parties about the court hearing date for the petition.

Obtain Spousal Property Order

OPTIONAL

LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

Issue Certificate of Trust

OPTIONAL

Formalize successor trustee authority for trust-held assets.

Upload Trust Agreement

Obtain Business Operating Authority

If the decedent owned a business, you may need a court order to continue operations and pay employees.

Avoid Bond Cost

LOCKED

Obtain signatures from all heirs to waive the bond requirement, then file the completed waiver with the court.

UPLOAD MISCELLANEOUS

Asset Discovery

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Letters of Administration required

Upload Documents →

Creditor Claims

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FIDUCIARY RISK: Statutory Debt Priority

Evaluate claims according to legal priority (e.g., administration costs, taxes, then general debts).

Publish Notice to Creditors (CA — Starts Claims Timing)

Check Deadline

LOCKED

https://www.expectedestate.com/roadmap

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In California, publication of the required notice is a standard step and commonly drives creditor claims timing. Use the court-accepted notice format and follow local publication requirements for your county.

☐ Mail Notice to Known Creditors (As Applicable) LOCKED

Notify known creditors as appropriate and retain proof of mailing/notice. Requirements can vary by county and case posture; confirm local practice.

☐ International Fiduciary: W-8BEN/W-8CE Assessment

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

☐ International Fiduciary: ITIN Acquisition Protocol

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maximum backup withholding on distribution

☐ Evaluate Estate Solvency

Compare total assets to total liabilities and funeral/admin expenses.

☐ Wait for 4-Month Claim Period LOCKED

Creditors have 4 months from publication of the creditor notice to file claims against the estate.

☐ Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ Document Claim Evaluation & Decision

Formally evaluate each timely creditor claim. Document whether the claim is allowed in full, partially allowed, or rejected.

☐ File Formal Rejection of Claim (CA)

If a claim is invalid or unsupported, follow California's procedure to reject the claim and retain proof of delivery. Confirm any statutory deadlines and required notice language.

Upload Notice of Rejection (as required)

Upload Proof of service/mailling

☐ Pay Approved Claims (By Statutory Priority) LOCKED

Pay valid debts in the statutory priority order applicable in your jurisdiction (commonly including administration costs, taxes, secured debts, then unsecured claims). Document and retain receipts.

☐ File Proof of Creditor Notice (CA) LOCKED

Retain and submit proof of publication and any required mailed notices per local court practice. Confirm county-specific proof requirements.

UPLOAD MISCELLANEOUS

☐ Asset Liquidation

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☐ Obtain Court Approval for Minor Distributions

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters of Authority to every bank, brokerage, and insurance company.

Death Certificate Obtained



Upload Letters of Authority



Transfer Financial Accounts



LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.



Prepare Notice of Proposed Action

If you have independent administration authority, you must notify heirs of your intent to sell real property.



Upload Notice of Proposed Action Form



About Notices of Proposed Action

Authorization



Wait for 15-Day Objection Period



LOCKED

Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.



File Petition to Confirm Sale

If you do NOT have independent administration authority, or if someone objects, you must petition the court to confirm the sale of real property.



Upload Petition to Confirm Sale Form



About Sales Confirmation

File Petition



Obtain Sale Confirmation Order



LOCKED

Receive signed court order confirming the real estate sale and allowing the close of escrow.



Complete Property Sale & Close Escrow



LOCKED

Finalize the sale of real estate through IAEA or court-confirmed process, sign closing documents, and receive sale proceeds into the estate account.



File Form 1041 (Fiduciary Income Tax)

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.



Issue Schedule K-1 to Beneficiaries

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.



Pay Final Taxes



Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.



Upload All Tax Documents



Prepare Final Accounting



LOCKED

Document all income, expenses, and distributions for court review.



UPLOAD MISCELLANEOUS



Final Distribution

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Complete liquidation first

View Assets →